

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
LOS ANGELES UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

LES OBIE (EN 1061363),

A Permanent Certificated Employee,

Respondent.

OAH No. 2024060386

DECISION

A Commission on Professional Competence (Commission) heard this matter in Los Angeles, California, in-person on October 14 through 16, 2024, and by videoconference on October 17 and 18, 2024. The Commission members were Ray Alcala; Jim Durham; and Administrative Law Judge (ALJ) Chantal M. Sampogna, Office of Administrative Hearings (OAH), State of California, who presided.

Brian Davenport, Attorney, represented the Los Angeles Unified School District (District).

Joshua Adams, Attorney, Gilbert and Sackman, a Law Corporation, represented respondent Les Obie.

Testimony and documents were received in evidence. The record closed and the matter was submitted for decision on October 18, 2024.

SUMMARY

District seeks to dismiss Respondent, a secondary physical education (PE) teacher, based on his immoral, unprofessional, and dishonest conduct, and based on his persistent violation of required policies, willful refusal to perform his regular assignment, and his evident unfitness to teach. Between November 2021 and October 2023, Respondent worked first at a middle school and then at a high school as a PE teacher. In this capacity he engaged in repeated acts which violated multiple District policies, such as leaving school in the middle of a class without notifying the administration, calling African American students "monkeys," repeatedly making statements to students about his belief in the superiority of Christianity, and making multiple explicit sexual statements to his previous assistant principal during a phone call.

Respondent denied District's allegations but for his speaking of Christianity with students, which he promised he would not do in the future. Respondent's denials were not persuasive and generally demonstrated his inability to adhere to District policies and standards. Further, respondent's conduct during hearing included violence, non-responsiveness, and a disregard for the hearing procedures, demonstrating his present inability to comport himself to behaviors necessary to uphold required decorum and the safety of others.

District established cause to dismiss respondent from District, including his evident unfitness to teach. The majority of the Commission concludes dismissal is the appropriate discipline.

FACTUAL FINDINGS

Jurisdiction

1. Respondent obtained his 30-day substitute teaching permit in May 2014 and obtained his clear teaching credential in June 2018. His credential is scheduled to expire on July 1, 2028.

2. District hired Respondent as a probationary teacher in 2016. He became a permanent certificated employee in 2018 as a secondary teacher of PE.

3. On April 17, 2024, Francisco J. Serrato, Ed.D., acting in his official capacity as Chief Human Resources Officer of District, executed the Statement of Charges (SOC) against Respondent.

4. On May 8, 2024, Dr. Serrato issued a Notice of Board of Education Intention to Dismiss and Placement on Immediate Unpaid Suspension against Respondent.

5. On June 2, 2024, Respondent timely submitted a Request for Hearing.

6. On June 21, 2024, Dr. Serrato, acting in his official capacity, filed an Accusation against Respondent.

Audubon Middle School

7. Respondent worked as a PE teacher at Audubon Middle School (AMS) during the fall of 2018 through the spring of 2022. The fall of the 2021 to 2022 academic year was the first semester teachers and students returned to in-person instruction after the Covid 19 pandemic statewide orders for virtual learning were lifted. Deanna Hardemion, Principal of AMS during the period in question, and Laura Blanco, an AMS PE teacher during the period in question, credibly testified at hearing in support of District's charges against Respondent regarding his conduct at AMS.

NOVEMBER 4, 2021 INCIDENT

8. On November 4, 2021, during their third period PE class, Respondent and his two fellow PE teachers, Ms. Blanco and Jovannie Mabrie, discussed the use of PE equipment. Respondent, the lead of the AMS PE Department, directed Ms. Blanco and Mr. Mabrie to not use PE equipment that day due to Covid restrictions and directed them to have their students walk the field as their PE activity.

9. While the students and the AMS PE teachers were on the PE field, and approximately 20 minutes before the end of third period, Respondent left the field, leaving his students unsupervised. Respondent did not notify the other PE teachers or AMS administration of his leaving. (Charge 1; Exh. 1, p. A3.) Ms. Blanco reported the incident to the AMS administration as she and Mr. Mabrie needed coverage for Respondent's students during the remainder of the period.

10. Respondent did not return to AMS for the remainder of the school day, failing to report to his fifth and seventh period classes. As a result, AMS administration had to locate emergency substitute coverage for his classes. Respondent did not notify or receive permission from AMS administration for his absence on November 4, 2021,

and did not adhere to sign-in/sign out procedures to reflect his absence from approximately 11:00 a.m. to 2:30 p.m. (Charge 2; Exh. 1, p. A3.)

11. District did not present evidence of Respondent's timecard or pay received for November 4, 2021. District failed to establish Respondent failed to truthfully and accurately report his absence on his timecard or that he received pay for hours not worked. (Charge 2c; Exh. 1, p. A3.)

NOVEMBER 15, 2021 INCIDENT

12. District alleges Respondent engaged in the following conduct on November 15, 2021, at AMS:

3. [I]n the presence of students, [Respondent] said the following to [PE] Teacher Jovannie Mabrie, when [Respondent] advised him to supervise the locker room:

a. Yelled words to the effect of, "I'm not down with homosexuality."

b. Yelled, "I'm a quarterback. I tell people what to do all the time."

c. Stood in close proximity to [Mabrie's] face while yelling.

(Exh. 1, p. A3, lines 23-28.)

13. Ms. Blanco testified in support of these allegations. Ms. Blanco explained Mr. Mabrie told her Respondent had made these statements to him as described in Charge 3 of the SOC, but she did not witness Respondent making these statements to

Mr. Mabrie. District did not present direct evidence in support of Charge 3 and failed to establish the allegations contained therein.

14. Ms. Blanco recalled generally during her work with Respondent he made statements against homosexuality and in support of Christianity. For example, she recalled him making statements to students to the effect of 'homosexuality is not right' and 'look for God and Jesus Christ.' As a member of the LGBTQ community, Respondent's comments about homosexuality made Ms. Blanco feel unsafe at work. Ms. Blanco also recalled Respondent yelling at students, in a military type of voice, and stating he was the best quarterback.

AMS CONFERENCES AND NOTICE OF UNSATISFACTORY ACT AND NOTICE OF SUSPENSION

August 2020 Conference

15. On August 27, 2020, Principal Hardemion, Respondent, and a United Teachers of Los Angeles (UTLA) representative met for a conference (August 2020 conference). The issues discussed at the conference were redacted from the Summary of Conference memo (Exh. 22). However, the assistance and guidance section, which was not redacted, showed that during the August 2020 conference, Principal Hardemion reviewed with Respondent District's Employee Code of Ethics and the District's Ethics Policy Statement and directed Respondent to refrain from engaging in conduct that negatively impacts the District or his position as a teacher. Generally, the assistance and guidance sections of District's communications with Respondent denotes District policies and standards reviewed with, and provided to, Respondent.

December 7, 2021 Conference

16. On December 7, 2021, Principal Hardemion, AMS Assistant Principal (AP) Tasha Bell-McAllister (currently a Principal for District), Respondent, and a UTLA representative met for a conference to discuss Respondent's November 2021 conduct. (December 2021 conference.) The December 2021 conference was memorialized in the December 8, 2021 Summary of Conference of December 7, 2021 (December 2021 Conference Memo). (Exh. 12.) Respondent did not provide a verbal or written response to District's allegations regarding his November 2021 conduct.

17. During the December 2021 conference, Principal Hardemion reviewed the UTLA Contract's sign-in and sign out requirements and District's Attendance Policy. Specifically, the UTLA Contract, Article IX, Section 2.0, requires teachers to, upon each arrival to and departure from their assigned location, enter their initials on District's sign-in and sign-out form. (Exh. 12, p. A174.) Principal Hardemion also reviewed with Respondent District's Code of Conduct with Students, which prohibits teachers from making statements or comments in the presence of students which are not age-appropriate, professional, or may be considered sexual in nature, harassing, or demeaning. (See Exh. 24.)

18. During the December 2021 conference, Principal Hardemion also provided Respondent a detailed review of the following District policies and attached them to the December 2021 Conference Memo: Employee Code of Ethics; Board Resolution Reaffirming the Respectful Treatment of All Persons; Sexual Harassment Policy; Non-Discrimination and Anti-Harassment (Including Sexual Harassment) Policy and Complaint Procedure (Non-Discrimination and Anti-Harassment Policy); California Standards for the Teaching Profession (CSTP); and the Teaching and Learning

Framework Standard 4, addressing a teacher’s professional responsibilities. (Exh. 12, p. A175.)

19. During the December 2021 conference, and as memorialized in the December 2021 Conference Memo, Principal Hardemion directed Respondent to read, review, and adhere to the identified policies and standards at all times. Among other directives, she directed Respondent to follow the following assistance and guidance:

11. . . . treat students, parents, and staff with courtesy and sensitivity.

12. . . . be professional and respectful in all your interactions with students, parents and staff, and refrain from taking any actions or making any statements that may be considered harassing or discriminatory.

13. . . . [set] a safe, respectful classroom and school environment and that we serve as models for student behavior.

14. [¶] . . . [¶] a. [Refrain from] making statements or comments, either directly or in the presence of student(s) which are not age-appropriate, professional or which may be considered sexual in nature, harassing, or demeaning. [¶] . . . [¶]

18. [¶]. . . [¶] [Referencing District’s Non-Discrimination and Anti-Harassment (Including Sexual Harassment) Policy]

a. "Protected Category(ies) shall refer to gender/sex (including gender identity, gender expression, . . . race, actual or perceived sexual orientation . . . "

b. "References to any of the Protected Categories are normally not job-related and, thus, there is no valid reason to make such references in most business situations."

[¶] . . . [¶] c. Prohibited discriminatory or harassing acts or behaviors include . . . suggestive, insulting, or derogatory comments, epithets, innuendos, sounds, whistling, jokes, teasing, or slurs . . . based on any protected category.

April 2022 Notice of Unsatisfactory Act

20. On April 19, 2022, District, through Principal Hardemion, issued respondent a Notice of Unsatisfactory Acts (NOUA) and a Notice of Suspension (NOS). The NOUA informed Respondent District considered Respondent's November 4 and 15, 2021, conduct to be unprofessional and a persistent violation of and or refusal to obey applicable laws and policies (the policies identified in the December 2021 Conference Memo). The NOS recommended Respondent be suspended for four days, but no evidence was submitted showing Respondent served the suspension.

PRINCIPAL HARDEMION'S TESTIMONY

21. At hearing, Principal Hardemion explained District teachers are required to undergo annual trainings on multiple topics including District's attendance, sexual harassment, and non-discrimination policies, and she personally provided these trainings to AMS teachers when Respondent worked at AMS. Regarding attendance,

Principal Hardemion reiterated District's Attendance Policy which requires teachers to work every hour they are assigned and requires teachers to be at their assigned work location on time every working day. (Exh. 23.) She added that AMS was generally understaffed, and administrators, teachers, and staff would share personal cell phone numbers to timely communicate absences and ensure coverage of classes. However, Respondent did not contact her on November 4, 2021, regarding any absence and did not notify her he had left the AMS campus for any period of time that day.

22. Principal Hardemion did not have complaints regarding Respondent's teaching of PE. She recalled Respondent took on leadership roles as a PE teacher, working at lunch coaching students during the lunchtime sports program and with AMS's intramural football program. Principal Hardemion recalled Respondent was awarded a 2021 and a 2022 Coach of the Year award for these efforts.

Mervyn Dymally High School

23. Respondent worked at Mervyn Dymally High School (MDHS) from August through October 2022 as a PE and Health teacher and as a quarterback coach for the MDHS football team. Effective October 4, 2022, Respondent was housed by District and placed on paid administrative leave.

AUGUST 25, 2022 INCIDENTS

24. On August 25, 2022, Respondent told 10th grade student A [REDACTED] V., "Zip up your sweater. I don't want to look at your boobs. You shouldn't have them out like that," or words to that effect. (Charge 11; Exh. 1, p. A4.)

25. On August 25, 2022, S [REDACTED] R., a 10th grade student whose grandmother had recently passed away, was looking at her phone, and Respondent

told her, "You'll get a lot of time to text your grandma in heaven." (Charge 13; Exh. 1, p. A5.)

26. On August 25, 2022, while in the gymnasium with his students, Respondent became upset because some students were not listening or complying with class rules. In response, Respondent directed his students to leave the gymnasium, walk outside, and sit on the hot concrete. He required them to sit there approximately 15 to 20 minutes for their misbehavior. (Charge 14; Exh. 1, p. A5.)

SEPTEMBER 2022 INCIDENTS

27. In September 2022, Respondent called A [REDACTED] T., a 10th grade African American student, a "monkey." (Charge 7; Exh. 1, p. A4.)

28. On September 8, 2022, Respondent told K [REDACTED] M., a 9th grade African American student, "If you care about football, you need to stop acting like a monkey," or words to that effect. (Charge 8; Exh. 1, p. A4.)

AUGUST THROUGH OCTOBER 2022 INCIDENTS

29. Between August 22, 2022, and September 2022, Respondent called members of the DMHS football team "fat uglies." (Charge 4a; Exh. 1, p. A4.)

30. Between August 22, 2022, and September 2022, Respondent said to his third period class, "This is America. You need to know how to speak English," or words to that effect. (Charge 9; Exh. 1, p. A4.)

31. Between August 22, 2022, and September 2022, Respondent questioned the transgender status of a 10th grade student, E [REDACTED] (legal name K [REDACTED] M.) by doing the following: (a) refusing to call them by their preferred name of E [REDACTED] at all

times; (b) refusing to use E [REDACTED]'s preferred pronouns while addressing them; and (c) telling E [REDACTED] they were lying about being a boy. (Charge 10; Exh. 1, p. A4.)

32. Between August 22, 2022, and October 2022, Respondent made the following religious comments to his class during instructional times (Charge 12; Exh. 1, pp. A4 & A5):

- a. Talked about Jesus and the Bible.
- b. Told them he was Christian and could bring up the devil.
- c. Started pacing back and forth speaking of demons.
- d. Yelled and talked about God.
- e. Claimed he was Christian and Catholic.
- f. Randomly shouted things about the devil while taking roll.
- g. Told students, "You need to take the stairway to heaven and wait at the pearly gates," or words to that effect.
- h. Told students they will burn in hell, if they don't hurry up running, or words to that effect.
- i. Cited random religious verses.
- j. Told a student her belief in Buddha was fake.

TESTIMONY OF MDHS PRINCIPAL, STAFF, AND STUDENTS

33. MDHS Campus Aide and Defensive Line Coach London Ricks, MDHS Principal Darvina Bradley, and three MDHS students, E ■■■ M., K ■■■ M., and S ■■■ G., provided credible testimony on behalf of District. During his time working with Respondent, Mr. Ricks often heard Respondent state he was a quarterback when he told people what to do, heard Respondent call African American students “monkeys,” and heard him talk about Jesus and the Bible in the classroom, making statements that Jesus and God are the only religion. Mr. Ricks also heard Respondent tell students “this is America” and they need to know how to speak English.

34. On September 8, 2022, Mr. Ricks was walking the campus to gather and redirect any students who were late to or ditching class. Mr. Ricks walked into the gym during Respondent’s PE class to direct a student to the office. Respondent told the student Mr. Ricks could not do anything because he was only an aide. Later that day Mr. Ricks entered the gym during fifth period to redirect a student to his proper classroom, and Respondent stated to the fifth period student, “He can’t save you, he’s just an aide.” During this fifth period class, Mr. Ricks also observed K ■■■ M. and Respondent engage in a verbal altercation. Mr. Ricks heard Respondent call K ■■■ M. a “monkey” and had to remove K ■■■ M. to prevent him from getting physical with Respondent.

35. Principal Bradley was principal of MDHS during Respondent’s employment. Principal Bradley hired Respondent and remembered him to be professional during the interview. Principal Bradley was unaware of any disciplinary history for Respondent upon his hire. Principal Bradley is familiar with District’s policies and standards provided to Respondent during his NOUA with AMS. She trained the MDHS teachers on these same policies at the beginning of each academic year.

36. Principal Bradley was involved in the investigation of the complaints made against Respondent by MDHS students and staff and subsequent disciplinary conferences and actions. MDHS students first made complaints to the administration on August 25, 2022. AP Johnnie Ausbon consulted with Principal Bradley regarding these early complaints and a subsequent disciplinary conference he held with Respondent the following day. Principal Bradley directed and supervised the investigation of the subsequent complaints made against Respondent through September 2022. The MDHS administrators interviewed over 25 of Respondent's students at random, and the majority of the students independently corroborated the allegations.

37. E■■■■ M., a senior at MDHS, testified at hearing. During the fall 2022 semester E■■■■ M. was a 10th grade student in Respondent's morning combined PE and Health class. On August 24, 2022, there was a fire drill during the PE class. Respondent told the students to line up, but some students were messing around. Respondent started "tripping out" and telling the students they would burn in hell if they did not listen to him. E■■■■ M. also recalled that Respondent would often talk about Christianity, recited Christian verses during class, told M■■■■ R., a ninth grader, that Jesus Christ is the savior and Christianity is superior, and told one of her friends that her belief in Buddhism was false. E■■■■ M. also recalled hearing Respondent call K■■■■ M. a "monkey." Finally, E■■■■ M. recalled observing A■■■■ C. and another female student holding hands, and she heard Respondent tell A■■■■ C. that being in a relationship with a girl is not right.

38. R■■■■ (legal name K■■■■ M.), a senior at MDHS, testified at hearing. During the fall 2022 semester, R■■■■ was a 10th grade student in Respondent's morning combined PE and Health class. During the fall 2022 semester, R■■■■'s

preferred names were E [REDACTED] and W [REDACTED], and they identified as a boy. During their testimony, R [REDACTED] described Respondent as a passionate teacher who involved a lot of Christianity in his teaching. R [REDACTED] had informed Respondent of their preferred name and gender identification. Sometimes it seemed that Respondent was respecting their choices, but other times he did not. R [REDACTED] recalled one day when they needed to put away their belongings before PE, and Respondent asked them if they identified as a boy, and they answered "yes." Respondent then told R [REDACTED] they needed to use the boys' locker room but when they tried, it was locked. Respondent then directed R [REDACTED] to go to the school office to ask what R [REDACTED] should do. R [REDACTED] later asked Respondent if it was his religion that made him not use their preferred name, and Respondent answered "no." During this part of their testimony R [REDACTED] became tearful and explained they were confused why Respondent would treat them that way.

39. S [REDACTED] G., a senior at MDHS, testified at hearing. During the fall 2022 semester S [REDACTED] G. was a 10th grade student in Respondent's seventh period PE class. S [REDACTED] G. explained that on August 25, 2022, Respondent made his students walk outside of the gym and sit down on the hot asphalt because students had been messing around during class. On a different occasion, she heard Respondent say to her friend A [REDACTED] C. to cover herself up because he did not want to see those things, while at the same time moving his cupped hands in front of his chest, referencing A [REDACTED] C's breasts. S [REDACTED] G. also heard Respondent call African American students "monkeys," and heard him often speak of religion, stating Christianity is superior. Finally, S [REDACTED] G. recalled hearing Respondent state he was Mexican and could speak Spanish, and when he said this, he used a high-pitched mocking tone. S [REDACTED] G. explained that she, herself, is Mexican, and she has experienced people speak Spanish in a high-pitched tone to mock people from Mexico.

MDHS STUDENT INCIDENT REPORTS

40. District submitted 15 additional Incident Reports written between August 26 and October 12, 2022, by students of Respondent. These statements supplement and explain the testimony of the student witnesses regarding the allegations in the SOC. The students were contacted by MDHS administrators at random.

41. Nine students affirmed Respondent required the students to sit on the hot concrete as a consequence of some students talking during class. (See Exhs. 42, 43, and 46-49.) Three students, including A [REDACTED] V., heard Respondent tell A [REDACTED] V. to zip up her sweater because he did not want to look at her boobs, and that this comment was made in front of the whole class. (See Exhs. 42, 62, & 63.) Four students, including S [REDACTED] R., heard Respondent make the comment to S [REDACTED] R. regarding texting her grandmother in heaven. (See Exhs. 46-48 & 63.) Three students saw Respondent pace back and forth and heard him speak of the devil and demons. (See Exhs. 49, 51, & 64.)

42. Four students, including K [REDACTED] M., heard Respondent tell K [REDACTED] M. to stop acting like a monkey. (See Exhs. 42, 53, 54, & 56.) One student heard Respondent call A [REDACTED] T. a "monkey." (See Exh. 56.) One student heard Respondent call members of the football team "fat uglies." (See Exh. 57.)

43. Two students heard Respondent tell Spanish speaking students they need to speak English. (See Exhs. 58 & 59.) One student heard Respondent tell R [REDACTED] he did not believe their pronouns and would not use their preferred name. (See Exh. 59.)

ADDITIONAL ALLEGATIONS REGARDING RESPONDENT'S CONDUCT AT MDHS

44. District also alleged Respondent called members of the football team "Gorillas" (Charge 4b), told T [REDACTED] P., a 10th grade African American student, to not "hop over the fence like a monkey" (Charge 5), and called Z [REDACTED] C., a 10th grade African American student, a "hood monkey" (Charge 6). (Exh. 1, p. A4.) However, District failed to present direct evidence in support of these allegations. Accordingly, Charges 4b, 5, and 6, were not established.

MISCONDUCT WHILE ON PAID ADMINISTRATIVE LEAVE

45. On July 15, 2023, at 1:51 a.m., while Respondent was on paid administrative leave, respondent called AP Bell-McAllister, and told her the following:

- a. "I want to see you and go out with you and get a glass of wine."
- b. "I have always wanted to fuck on you."
- c. "I am also chilling some Patron and would love to pour it all over you pussy and fuck you right now."
- d. "I love seeing your big ass walk across the yard."
- e. "I know when you use to pull the boys in your office, I bet you would fuck on them."
- f. "Do you like fucking on boys with that nice pussy. I bet it is nice."
- g. "I want to fuck you so bad."

h. "How was it going over at LA high, did you get some while there."

(Charge 16; Exh. 1, pp. A6-A7; Exh. 21, pp. A224-A225.)

46. AP Bell-McAllister hung up on respondent. Respondent called AP Bell-McAllister back and left her a voicemail message where he continued to ask for a date. (Charge 17; Exh. 65.) On the voicemail message, respondent made the following statements to AP Bell-McAllister:

Hey Ms. McAllister, not Mrs. I guess you're eligible so . . . I just want to take you up on that. I know it's kind of late, but you did kinda grab me a couple times at school . . . on my jacket . . . grab my arm . . . out of nowhere and to me that's a sexual attempt, when you grab someone's arm when they not expecting it . . . that's fornication. Did it actually happen? It felt like it. You touched me in a way that I wasn't expecting you to touch me. Just like Ms. Lewis touched my ass a couple of times at Audubon. And don't be running off with no students, when your wig came off. That's what Mabrie told me. You run off and your wig comes off with students. And that's the bottom line. . . . So, yeah, if a man wants to ask a woman, take 'em up on an offer, why not? We are both grown people, you're an adult, I'm an adult . . . eligible people . . . I'm not trying to take anyone's life. You forgot that I prayed for you . . . in . . . the meeting . . . we held hands together and I said I hope you go back to your husband.

47. At the time of Respondent's voicemail message, Respondent had not worked with AP Bell-McAllister for over a year. Despite AP Bell-McAllister terminating the phone call, he pursued the communication. In Respondent's voicemail message to AP Bell-McAllister, he accused her of touching him sexually and propositioning him for a date, implied she had had inappropriate and sexual contact with a student, and disparagingly referenced her physical appearance.

48. Within an hour of his calls to AP Bell-McAllister, respondent called three other AMS female employees: Principal Hardemion, Ms. Collins (first name not provided), AMS's Special Education Coordinator, and Ms. Blanco, but they did not answer his calls. Respondent also texted Ms. Blanco and asked her what her favorite drink is.

49. AP Bell-McAllister credibly testified at hearing. Initially, she affirmed Principal Hardemion's testimony regarding the multitude of trainings District requires teachers to complete annually, including sexual harassment trainings. When asked if she had received any inappropriate communications from Respondent, she described his statements as contained in Charge 16.

50. A few days after the phone call and voicemail message, on July 18, 2024, AP Bell-McAllister reported the incident to District's Equal Opportunity Section (EOS) and submitted a complaint in which she reported the statements contained in Charge 16, a contemporaneous statement. EOS Investigator Robbie Biggs investigated the matter and asked Respondent to schedule an interview to respond to the allegations but Respondent did not respond. On September 19, 2023, the EOS issued a Disposition Closure Letter finding AP Bell-McAllister's allegations to be true and finding Respondent demonstrated a pattern of inappropriate and not business-related

behavior in which perceived “sexual overtones” were found in the comments reported. (Exh. 21.) Respondent did not appeal the EOS findings.

51. AP Bell-McAllister explained her well-being is still impacted by Respondent’s conduct, and she became tearful during this portion of her testimony. AP Bell-McAllister explained that based on Respondent’s July 2023 conduct she has a security plan established with her current school, and she is walked to her car daily.

52. Ms. Blanco also testified regarding Respondent’s July 15, 2023, conduct. Ms. Blanco explained that in the summer of 2023, at approximately 2:00 a.m., she received a text from Respondent asking her what her favorite drink is.

MDHS CONFERENCES AND NOTICE OF UNSATISFACTORY ACT

53. On August 26, 2022, AP Ausbon met with Respondent regarding recent allegations against him. AP Ausbon reviewed allegations made by students regarding Respondent’s discussions of religion and the devil, and regarding statements made to a female student regarding her PE attire. AP Ausbon counseled Respondent against such conduct and provided him District’s Code of Conduct with Students and its Bulletin 5479.2 – Guidelines for Teaching About Religion in School. AP Ausbon documented this conversation in an August 26, 2022 Inter-Office Correspondence (August 2022 Memo) (Exh. 15) and reported to Principal Bradley regarding the discussion and the August 2022 Memo.

54. On October 20, 2022, Principal Bradley, Staff Relations Field Director Damian Lenon, Respondent, and a UTLA representative met for a conference (October 2022 Conference). During the October 2022 Conference, they discussed the allegations made by MDHS students against Respondent, including those appearing in the SOC, Charges 4 through 14. As documented in the October 25, 2022 Inter-Office

Correspondence (October 2022 Conference Memo) (Exh. 16), Principal Bradley provided Respondent assistance and guidance as to the individual violations and directed him to not repeat said conduct. In addition to providing Respondent with copies of District's policies and standards previously provided to him by Principal Hardemion and AP Ausbon, Principal Bradley also provided Respondent with District's Abolition of Corporal Punishment Policy and Bullying and Hazing Policy.

55. Sometime after the October 2022 Conference, Respondent submitted a response to the allegations contained therein. (Exh. 17.) Respondent denied all the allegations but for those related to speaking of Christianity. Respondent denied using racist terms with anyone and stated he would stop using religious terms.

56. Based on the information contained in the October 2022 Conference Memo, on February 7, 2023, District issued respondent a NOUA (2023 NOUA) and a Notice of Suspension (2023 NOS) suspending Respondent for 15 days.

57. On September 27, 2023, District Region South Operations Coordinator Sergio Corral met with Respondent (September 2023 Conference) regarding his July 15, 2023, conduct and documented the meeting in an October 3, 2023, Interoffice Correspondence. (Exh. 20.) On October 4, 2023, District issued Respondent an NOUA (October 2023 NOUA) and NOS (October 2023 NOS), with the October 2023 NOS calling for a 15-day suspension. (Exhs. 18 & 19.) In the October 2023 NOUA, District cited its policies and standards provided and explained to Respondent at the previous conferences and in the previously issued NOUAs.

Respondent's Violations of District Policies and Standards

DISTRICT'S POLICIES AND STANDARDS

58. During the noted meetings with District administrators, Respondent was provided with assistance and guidance in the form of verbal direction and the review of District policies and standards which respondent was required to follow and uphold. In addition to the specific assistance and guidance provided by the administrators, the policies and standards clearly communicated to Respondent the requirements of his position as secondary teacher, as summarized below.

Employee Code of Ethics

59. District's Code of Ethics is intended to help District achieve success by setting common expectations and increasing trust, commitment and teamwork within the District, and between the District and the community, and it applies to all District personnel. (Exh. 25, p. A234.) The Code of Ethics provides that District does not tolerate discriminatory or harassing behavior of students or colleagues and that violations of the Code of Ethics may result in administrative or disciplinary action. (*Id.* at pp. A234 & A235.)

Attendance Policy

60. District employees must work every hour they are assigned and must comply with legal restrictions, District policy and procedures, and the respective collective bargaining rules regarding reporting of absence and providing appropriate documentation. (Exh. 23.)

Code of Conduct with Students

61. Item 3 of District's Code of Conduct with Students provides "employees and all individuals who work with or have contact with students are expected to use good judgment and are cautioned to avoid situations including . . . [¶] . . . [¶] [e]ngaging in any behaviors, either directly or indirectly with a student(s) or in the presence of a student(s), that are unprofessional, unethical, illegal, immoral, or exploitative." (Exh. 24, p. A232.)

Board of Education Resolution To Enforce the Respectful Treatment of all Persons

62. District's Board of Education Resolution To Enforce the Respectful Treatment of all Persons reaffirms District's policy that "students and adults in both schools and offices should treat all persons equally and respectfully and refrain from the willful or negligent use of slurs against any person on the basis or [*sic*] race, language spoken, color, sex, religion, handicap, national origin, immigration status, age, sexual orientation, or political belief" (Exh. 26, p. A239.)

Sexual Harassment Policy

63. District's Sexual Harassment policy defines sexual harassment "as unwelcome sexual advances, requests for sexual favors, and other verbal, visual, or physical conduct of a sexual nature made by someone from or in the work or educational setting [when] the conduct has the purpose or effect of having a negative impact upon the individual's work or academic performance, or of creating an intimidating, hostile, or offensive work or educational environment." (Exh. 27, p. A242.) Examples of verbal sexual harassment include the use of suggestive, derogatory, or

vulgar comments; the use of sexual innuendos or slurs; or making unwanted sexual advances, invitations, or comments. (*Id.* at p. A244.)

Non-Discrimination and Anti-Harassment Policy

64. District's Non-Discrimination and Anti-Harassment Policy prohibits workplace discrimination or harassment based upon, among other bases, an individual's race, gender or sex (including gender identity), actual or perceived sexual orientation, religion, color, national origin, ancestry, physical or mental disability, or medical condition. (Exhs. 28 & 32.)

California Standards for the Teaching Profession

65. CSTP were developed to support teachers to be responsive to "the varied socio-cultural, racial, religious, ethnic, linguistic, and economic backgrounds of all students" and to consider "how learning differences and abilities, gender and gender identity, family structure, sexual orientation, and other aspects of humankind influence learning and teaching." (Exh. 33, p. A352.)

66. Standard 2.1 requires teachers to promote social development and responsibility within a caring community where each student is treated fairly and respectfully. It further requires teachers to model and promote fairness, equity, and respect in a classroom atmosphere that values all individuals and cultures, and accepts and respects diversity in terms of cultural, religious, linguistic, and economic backgrounds; learning differences and ability; gender and gender identity; family structure and sexual orientation; and other aspects of humankind. (Exh. 33, p. A357.) Standard 2.3 requires teachers to establish and maintain learning environments that are physically, intellectually, and emotionally safe. (*Ibid.*) Standard 6.7 requires teachers

to demonstrate professional responsibility, integrity, and ethical conduct in the classroom. (Exh. 33, p. A367.)

District's Teaching and Learning Framework

67. Standard 4, Component 4c, of District's Teaching and Learning Framework (Standard 4c), addresses a teacher's duty to demonstrate professionalism. Standard 4c provides a teacher must demonstrate ethical conduct and compliance with school, District, State, and Federal regulations. (Exh. 34, p. A370.)

District Secondary Teacher Class Description

68. A District secondary teacher must establish a classroom environment that is safe and supportive, where students feel free to contribute their ideas, and where teacher and student interactions are respectful and polite to promote a positive learning environment for all students. A District secondary teacher must be able to work effectively with all racial, ethnic, linguistic, disability, and socioeconomic groups. (Exh. 35, pp. A372-A373.)

Guidelines for Teaching about Religions

69. In accordance with the First Amendment of the Constitution's prohibition against the promotion of religion by the government, District's Guidelines for Teaching about Religions prohibits school personnel from promoting any one religion. In the context of instruction, teachers may prepare lessons about religion to help students develop a basic understanding and appreciation of the role of religion in cultures. (Exh. 29.)

Anti-Bullying Policy (Student-to-Student and Student-to-Adult)

70. District policy requires all schools and all personnel to promote mutual respect, tolerance, and acceptance among students and staff. (Exh. 31, p. A292.) Verbal and non-verbal bullying include name-calling and hurtful teasing. Bullying includes any deliberate and unwanted severe or pervasive physical or verbal act that has the intention of, or can be reasonably predicted to have the effect of, one or more of the following:

1. Reasonable fear of harm to person or property.
2. Substantially detrimental effect on physical or mental health.
3. Substantial interference with academic performance.
4. Substantial interference with the ability to participate in or benefit from school services, activities, or privilege.

(Exh. 31, p. A293.)

Abolition of Corporal Punishment

71. District's Abolition of Corporal Punishment policy prohibits the use of corporal punishment as a disciplinary option at any grade level and with any student "The Superintendent encourages the use of positive approaches to discipline and classroom management to ensure that students conform to proper standards of behavior permitting them to derive greater benefits from the educational program."

(Exh. 30.)

RESPONDENT'S VIOLATIONS

72. When Respondent engaged in the misconduct at MDHS identified in Factual Findings 24 through 43 and 45 through 52, Respondent willfully refused to perform his regular assignment without reasonable cause, as prescribed by the reasonable rules and regulations of District. Respondent failed to follow administrative directives and assistance and guidance previously given to him at the December 2021 Conference and in the December 2021 Conference Memo (see Factual Findings 16 through 19) thereby failing to adhere to the requirements of his assignment as a secondary teacher. (Charge 15 and 15a, Exh. 1, pp. A5 & A6.) Respondent's conduct violated District's policies as described in Factual Findings 59, 61 through 67, and 70. (Charge 15b, Exh. 1, p. A6.)

73. When Respondent engaged in the misconduct identified in Factual Findings 45 and 52, respondent willfully refused to perform his regular assignments without reasonable cause, as prescribed by the reasonable rules and regulations of District. Respondent failed to follow administrative directives and assistance and guidance previously given to him in the December 2021 Conference Memo, including but not limited to, that he, as a secondary teacher for District, be professional and respectful in his interactions with staff, and refrain from taking any actions or making any statements that may be considered harassing or discriminatory; that he comply with District policy that prohibits discriminatory or harassing acts or behaviors; that he maintain appropriate and professional relationships with staff; and that he not exhibit inappropriate conduct. (Charge 18a, Exh. 1, p. A7.) When Respondent engaged in the July 15, 2023, conduct, he also violated the District policies previously provided to him. (See Factual Findings 15-20 & 53-57). (Charge 18b, Exh. 1, p. A8.)

Commissioner Dissent

74. Commissioner Durham did not find District's evidence credible as to the following Charges: Charge 4a, alleging Respondent called members of the MDHS football team "fat uglies," Charge 8, alleging Respondent called K [REDACTED] M. a "monkey," and Charge 16 b through 16h, alleging the sexual communications Respondent made to AP Bell-McAllister during the July 15, 2023, phone call.

Respondent's Evidence

75. Respondent obtained his bachelor's degree in kinesiology from the University of Nevada Las Vegas and Long Beach State University. He enjoys teaching PE and coaching football. As a PE teacher, he created challenging curriculum that taught students how to warm up for and participate in various PE activities, and he emphasized the importance of health and exercise. Respondent denied any wrongdoing and asserted his teaching has been inclusive of all his students and his goal was to be safe, respectful, and responsible in his teaching.

RESPONDENT'S PERFORMANCE AS A TEACHER

76. Respondent established his teaching performance before November 2021 was positive, and throughout his teaching, he provided effective PE instruction to his students and was an active participant in the PE departments in which he was involved.

77. Respondent submitted his 2016-2017 Probationary Teacher Evaluation and 2017-2018 Probationary 2 Teacher Evaluation, completed by Cyril Baird, Principal of Westside Global Awareness Magnet. (Exhs. 9 & A.) Principal Baird provided positive comments about Respondent's teaching performance and growth as a PE teacher. For

example, Principal Baird commented that Respondent had thoroughly addressed instructional growth objectives and implemented them effectively, that he found Respondent to be a valuable teacher who was dedicated to students and the school community, and that Respondent's teaching had a positive impact on student performance. (Exh. 9, p. A160.)

78. Respondent submitted photos of his Coach of the Year awards provided to him by AMS in 2021 and 2022, demonstrating AMS found Respondent to be a valuable coach during these years. (Exhs. B & C.) In addition, Respondent submitted two of his lesson plans for September 2020, while teaching online PE at AMS, and the AMS syllabus for the 2021-2022 academic year. These documents showed Respondent's comprehensive PE curriculum and that he translated the information into Spanish for Spanish speaking students. Finally, Respondent submitted three Incident Reports written by students E [REDACTED] H., B [REDACTED] A., and H [REDACTED] P., who were in Respondent's Health class at MDHS and who found Respondent to be a good teacher and had not heard him say anything inappropriate. (Exhs. I-K.)

RESPONSE TO SOC

Conduct at AMS

79. Regarding his conduct on November 4, 2021, Respondent claimed he left campus that day out of fear he was going to be attacked. He explained that earlier in the semester a "black" and "special ed" student had threatened to shoot him and kill him and that that student was suspended. He claimed that on November 4, 2021, he was on the field and another "black" and "special ed" student approached him and entered his personal space; Respondent feared for his life and left the school. He acknowledged he did not tell anyone he was leaving but he determined it was

sufficient to look at Ms. Atkinson, the attendance clerk, while he was leaving campus, and he was certain she understood why he was leaving.

80. Respondent acknowledged he also missed his fifth and seventh period classes on November 4, 2021, but explained that during this time he purchased Kelly green tablecloths for an award ceremony happening that afternoon afterschool. Respondent returned to AMS after the school day ended to attend the award ceremony.

81. Respondent's explanation of his November 4, 2021, conduct is unsubstantiated, self-serving, and phantastic, and is not believed. Respondent did not submit evidence substantiating his explanation as to why he left the AMS campus, such as witness testimony or the filing of an incident report to AMS. Further, Respondent did not raise this explanation to Principal Hardemion or other AMS staff during the investigation or during the subsequent December 2021 or April 2022 conferences. Respondent explained he had not provided this explanation previously because when he met with administrators about his November 2021 conduct, he was at ease and no longer fearing for his life.

Conduct at MDHS

82. Respondent denied being racist or making racist comments. He admitted to speaking of religion at the MDHS's Fellowship of Christian Athletes meeting when they discussed the Bible. He also acknowledged using a Bible verse from Matthew during a class but asserted it was to encourage students to attend college. He denied the other allegations regarding speaking of religion during his classes, including pacing or speaking of demons, stating students would burn in hell, or speaking against Buddhism. Respondent agreed to not speak of religion in the future while teaching.

83. Respondent recalled that on September 7, 2022, many students, including K [REDACTED] M., were using their cell phones and using profanity toward him. He directed K [REDACTED] M. to remove his hood and put away his cell phone, and K [REDACTED] M. began cussing at Respondent. Respondent submitted his own Incident Report documenting his experience of this incident. (Exh. 39.) Although credited, Respondent's statement on this topic does not disprove, nor is it mutually exclusive of, the conduct established in Factual Finding 28.

84. Respondent did not recall making a statement referencing a student's boobs, and did not recall directing students to sit on hot asphalt, although he claimed all the students had a yoga mat. Respondent did not recall interactions with R [REDACTED] about a bathroom, but stated he called them by their name on the class roster. R [REDACTED] was Respondent's first transgendered student.

Conduct While on Paid Administrative Leave

85. Respondent admitted Charge 16a, the statement to Ms. Bell-McAllister regarding getting a glass of wine, and admitted Charge 17, that he left the voice message as contained in Exhibit 65. Respondent denied Charges 16b through 16h and believes it would not be appropriate to say the things alleged. Respondent explained he called AP Bell-McAllister back after she hung up on him because he had not said all he wanted to say to her and he believes leaving the voicemail message was appropriate. Respondent admitted he had consumed a few alcoholic beverages the evening of July 15, 2023.

86. Respondent affirmed his statement in the voicemail message that he considers it fornication to grab someone's arm if they are not expecting it. He also

claimed Principal Bradley stripped naked in front of him on a staircase at school on the first day of the Rams 2022-2023 professional football season.

87. Respondent explained he believes it was acceptable to contact his former colleagues on July 15, 2023, between 1:00 a.m. and 2:30 a.m., because it was a summer night, and he was feeling the vibe. Respondent acknowledged Ms. Bell-McAllister was emotional during her testimony about his phone call and voicemail message, but he believed that was because he had called her so late. Respondent also believes it was okay to call Ms. Collins because they were prayer buddies. Respondent denied texting Ms. Blanco but believed it was also okay to call her because it was summertime, and they are both Mexican.

ASSISTANCE AND GUIDANCE

88. Respondent acknowledged receiving the annual trainings and the assistance and guidance provided to him, including review of District's policies and standards, as presented by District. Respondent recalled attending a sensitivity training which addressed how to be socially responsive to cultures and that race was discussed at the training. Respondent did not request any additional assistance from District with understanding or complying with District policies or standards, and he has not personally sought counseling or other assistance.

Respondent's Conduct During Hearing

89. During the in-person days of the hearing, October 14 through 16, 2024, respondent acted erratically and violently and demonstrated an inability to consistently comply with the decorum required in a professional setting.

90. During the first three days of hearing, which were held in-person, Respondent wore a neck gaiter bandana (bandana), decorated in the American flag, around his face, covering his nose and mouth. Respondent claimed the bandana was medically necessary but removed the bandana during his testimony. The bandana prevented others from discerning Respondent's complete facial expressions during hearing. Nonetheless, Respondent's disruptive behavior, including interruptive facial expressions, were apparent during hearing. On each occasion, the ALJ admonished Respondent for his behavior and directed him to the conduct required of all participants for the hearing to proceed.

91. During District's opening statement, Respondent turned to his left, faced the wall, and with pointed fingers moved his hands back and forth, as if in a conversation with someone, mumbled to himself, and interrupted District's opening statement with denials of the allegations being described. Later in the day, when AP Bell-McAllister testified and was asked whether she had ever received any inappropriate communications from Respondent, Respondent began making sounds.

92. On the second day of hearing, when Ms. Blanco testified regarding the text she had received from Respondent, Respondent looked at her and popped his eyes open wide, displaying a look of mocking shock, and he began making facial gestures, partially hidden by the bandana, and laughing. Respondent's conduct was disruptive and intimidating, and the ALJ cleared the hearing room. Next, when Mr. Ricks testified, Respondent pulled the bandana up over his eyes, to the point it was covering his whole face, and looked up toward the ceiling. The ALJ directed him to wear the bandana only over his nose and mouth, and Respondent complied. The ALJ asked if he understood going forward that was the expectation regarding the bandana, Respondent did not respond verbally but wrote on a piece of paper, "Yes."

93. At the beginning of the third day of hearing, Respondent's counsel asked to discuss matters before resuming with testimony. Respondent's counsel explained he was obligated to report that minutes before entering the hearing room, while checking in through security downstairs, Respondent began screaming and making threatening statements and threw a water bottle against a wall. Building security had informed counsel they were concerned for their own safety and the safety of others. The hearing did not resume until building security could be present in the hearing room. When the ALJ cleared the hearing room to wait for security, Respondent walked past his counsel's chair and punched the back of the chair in the direction of District's counsel who was standing less than two feet away from the chair and Respondent.

94. During his own testimony later that day, Respondent continued to be disruptive and frequently non-responsive to questions. Multiple times during his testimony he returned to talking about a Jim Thorpe t-shirt he received because he had started the Pete Brown Tennis program at AMS, his football accolades, how James Hardy and Nipsey Hussle had attended either AMS or MDHS, and that his mother was Mexican and his father was a member of the Yurok tribe. At one point during his testimony, Respondent looked over at the commissioners and said the commissioners were making fun of him.

95. During his testimony, Respondent also made gender and racial stereotype comments such as that Mr. Mabrie "opened the door like a woman" and that "women can't run schools." Respondent explained what he meant by his statement that "women can't run schools" is that in the Bible women are weaker than men and men are supposed to be the leader. Respondent became angry at this point in his testimony and the ALJ cleared the hearing room. During this portion of the testimony, Respondent mumbled an answer, and the court reporter asked him to

restate his answer. Respondent answered “Si” (Spanish for “yes”) and later in his testimony explained he did so because the court reporter was Mexican.

LEGAL CONCLUSIONS

Jurisdiction

1. Upon a written statement of charges formulated by the governing board of the school district, charging there exists cause, as specified in Education Code section 44932 or 44933, for the dismissal of a permanent employee of the school district, the governing board of the school district may, upon majority vote, give notice to the permanent employee of its intention to dismiss him or her at the expiration of 30 days from the date of service of the notice, unless the employee demands a hearing as provided in the Education Code. (Ed. Code, § 44934, subd. (b).) (Undesignated statutory references are to the Education Code.)

2. Similarly, the governing board of the school district charging a permanent employee of the school district with willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district, may, if it deems that action necessary, immediately suspend the employee from his or her duties and give notice to him or her of his or her suspension, and that 30 days after service of the notice of dismissal, he or she will be dismissed, unless he or she demands a hearing. (§ 44949, subd. (b).)

3. Such notice of the governing board of the school district to an employee of its intention to dismiss, together with a written statement of charges, is sufficient to initiate a hearing under section 11503 of the Government Code. (§ 44934, subd. (e).)

4. Jurisdictional requirements have been met. (Factual Findings 1-7.)

Standard and Burden of Proof

5. District has the burden of proving cause for dismissal by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038-1040.) A preponderance of the evidence means "'evidence that has more convincing force than that opposed to it.' [Citation.]" (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.)

The Commission on Professional Competence

6. When a public school district seeks to dismiss a permanent employee, such as Respondent, for immoral conduct or evident unfitness for service, a Commission on Professional Competence (Commission) must hold a hearing to determine whether the charged conduct occurred and, if it did, what the proper remedy should be. (§ 44944, subd. (c)(1); *Fontana Unified School Dist. v. Burman* (1988) 45 Cal.3d 208, 220.)

7. Section 44944, subdivision (d), provides the following pertaining to the decision of the Commission:

(d)(1) The decision of the [Commission] shall be made by a majority vote, and the commission shall prepare a written decision containing findings of fact, determinations of issues, and a disposition that shall be, solely, one of the following:

(A) That the employee should be dismissed.

(B) That the employee should be suspended for a specific period of time without pay.

(C) That the employee should not be dismissed or suspended.

(2) The decision of the [Commission] that the employee should not be dismissed or suspended shall not be based on nonsubstantive procedural errors committed by the school district or governing board of the school district unless the errors are prejudicial errors.

(3) The Commission on Professional Competence shall not have the power to dispose of the charge of dismissal by imposing probation or other alternative sanctions. The imposition of suspension pursuant to subparagraph (B) of paragraph (1) shall be available only in a suspension proceeding authorized pursuant to subdivision (b) of Section 44932 or Section 44933. [¶] . . . [¶]

Causes for Dismissal

8. Section 44932, subdivision (a), provides a permanent employee must not be dismissed except for one or more of the following causes:

(1) Immoral conduct

(2) Unprofessional conduct. [¶] . . . [¶]

(4) Dishonesty. [¶] . . . [¶]

(6) Evident unfitness for service. [¶] . . . [¶]

(8) Persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the state board or by the governing board of the school district employing him or her.

9. Immoral conduct and unprofessional conduct cannot be the basis for removal of a teacher unless that conduct indicates the teacher is unfit to teach.

(*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229 (*Morrison*).)

10. Section 44949, subdivision (b), provides a permanent employee is subject to immediate suspension and to dismissal if he or she willfully refuses to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district. (§ 44939, subd. (b).)

IMMORAL CONDUCT

11. The term “immoral” has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wilful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.” (*Board of Education v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

12. When considering whether a teacher has engaged in immoral conduct, the Commission must also consider “the unique position of public school teachers,

upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.' [Citation.]" (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

13. Cause exists under section 44932, subdivision (a)(1), to dismiss Respondent from District. District established by a preponderance of the evidence Respondent engaged in immoral conduct. Respondent engaged in repeated violations of District policies and standards, despite multiple trainings and assistance and guidance regarding these policies and standards.

14. District's policies and standards are adopted and enforced for the purpose of maintaining good order and the public welfare of District students and employees. Between August 25 and October 4, 2022, respondent repeatedly communicated with students in a way that demarcated them based on their race, gender, gender orientation, language spoken, national origin, and religion. Amongst other actions, Respondent used racial slurs, propagated his chosen religion, criticized students' inability to speak English, made reference to a teenage girl's breasts, and challenged the veracity of a transgender student's gender expression. Regardless of any ill will or negative intent, Respondent did so willfully, despite multiple trainings informing him such conduct was prohibited. (Factual Findings 24-43.)

15. Respondent's statements during his July 15, 2023, phone call and voice message to AP Bell-McAllister were immoral. Respondent's statements consisted of suggestive, derogatory, and vulgar comments, the use of sexual innuendos and slurs, and unwanted verbal sexual advances. Among other statements, Respondent accused AP Bell-McAllister of fornication, of inappropriate and sexual contact with a student, and repeatedly told her he wanted to "fuck" her. Respondent's statements to AP Bell-McAllister were indecent and inconsistent with rectitude and showed moral

indifference to the opinions of respectable members of the community. (Factual Findings 45-52.)

16. Respondent's November 4, 2021, conduct at AMS did not rise to the level of immorality. (Factual Findings 8-11.)

UNPROFESSIONAL CONDUCT

17. Unprofessional conduct is defined in 66 Corpus Juris, page 55, as conduct which violates "the rules or ethical code of a profession or such conduct which is unbecoming a member of a profession in good standing." (*Board of Educ. of City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 553 [overruled by *Bekiaris v. Board of Education* (1972) 6 Cal.3d 575 on other grounds].)

18. "... [T]he calling [of a teacher] is so intimate, its duties so delicate, the things in which a teacher might prove unworthy or would fail are so numerous that they are incapable of enumeration in any legislative enactment ... the teacher is entrusted with the custody of children and their high preparation for useful life. His habits, his speech, his good name, his cleanliness, the wisdom and propriety of his unofficial utterances, his associations, all are involved. His ability to inspire children and to govern them, his power as a teacher, and the character for which he stands are matters of major concern in a teacher's selection and retention." (*Goldsmith v. Board of Education* (1924) 66 Cal.App. 157, 169.)

19. Cause exists under section 44932, subdivision (a)(2), to dismiss Respondent from District. For the reasons provided in Legal Conclusions 13 through 15, District established by a preponderance of the evidence Respondent engaged in unprofessional conduct while working at MDHS and while on paid administrative leave. In addition, Respondent's speech and unofficial utterances were unbecoming

and contrary to District policies and standards, including the requirement that teachers promote respect in a classroom atmosphere that values all individuals and cultures, and accepts and respects diversity in terms of cultural, religious, and linguistic backgrounds. (Factual Findings 24-43 & 45-52.)

20. Respondent's November 4, 2021, conduct at AMS was also unprofessional. Respondent abandoned his middle school students, without communication with his colleagues or administrators. Respondent's conduct required his colleagues and administrators to find coverage for Respondent's responsibilities without cause. Respondent's conduct was a direct violation of the trust District placed in Respondent to maintain the safety and custody of the students placed in his care. (Factual Findings 8-11.)

DISHONESTY

21. Cause exists under section 44932, subdivision (a)(4), to dismiss Respondent from District. District established by a preponderance of the evidence Respondent engaged in dishonesty. Respondent's conduct at AMS, when he left the AMS campus without notice, and in violation of District's Attendance Policy and sign-in/sign-out procedures to reflect his absence, was dishonest. (Factual Findings 8-11.)

PERSISTENT VIOLATION OF OR REFUSAL TO OBEY SCHOOL LAWS AND REGULATIONS

22. Cause exists under section 44932, subdivision (a)(8), to dismiss Respondent from District. District established by a preponderance of the evidence Respondent persistently violated and refused to obey District's policies and standards, which are prescribed for the government of District's schools.

23. Respondent received annual training on District's policies and standards raised in the SOC. In addition, in August 2020, respondent received assistance and guidance regarding District's Code of Ethics. Despite this review, Respondent violated District's Code of Conduct on November 4, 2021, at AMS. (Factual Findings 8-11, 15.)

24. In December 2021 and April 2022, respondent received assistance and guidance regarding the following District policies and standards: Attendance Policy; Code of Conduct; Employee Code of Ethics; Board Resolution Reaffirming the Respectful Treatment of All Persons; Sexual Harassment Policy, Non-Discrimination and Anti-Harassment Policy; the CSTP; and Teaching and Learning Framework Standard 4. Despite this review, Respondent violated all but the Attendance Policy while working at MDHS between August 25 and October 4, 2022. (Factual Findings 16-20, 24-43.)

25. On August 26, 2022, respondent received assistance and guidance regarding District's Guidelines about Teaching Religion. Despite this review, Respondent continued to violate these guidelines during September 2022. (Factual Findings 24-43, 53.)

26. In October 2022 and February 2023, Respondent received assistance and guidance regarding all District's policies and standards raised in the SOC. Despite this review, respondent continued to violate these policies and procedures on July 15, 2023. (Factual Findings 45-52, 54-57.)

WILLFUL REFUSAL TO PERFORM REGULAR ASSIGNMENT WITHOUT REASONABLE CAUSE

27. Cause exists under section 44949, subdivision (b), to dismiss Respondent from District. District established by a preponderance of the evidence Respondent willfully refused to perform his regular assignments without reasonable cause.

28. Although Respondent established his ability to teach PE and coach football well and, at least between 2016 and 2018, meet standard performance, the actual teaching of PE is not the totality of his assignment as a secondary teacher. Rather, as was repeatedly told to him between August 2020 and October 2023, Respondent's regular assignment as a secondary teacher requires him to comply with District's policies and standards. The applicable policies and standards were provided to Respondent annually, and then again, on multiple occasions, in response to his misconduct. Respondent affirmed at hearing he received District's policies and standards and did not request assistance with understanding or complying with them. Nonetheless, Respondent repeatedly failed to perform his regular assignment in accordance with District's policies and standards without reasonable cause. (Factual Findings 8-11, 15-43, 45-95.)

EVIDENT UNFITNESS FOR SERVICE

29. Evident unfitness for service under section 44932, subdivision (a)(6), has been defined as a fixed character trait "presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district," which demonstrates the teacher is "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or

inadequacies." (*Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.)

***Morrison* Factors**

30. In *Morrison*, the court outlined seven factors for consideration "to determine whether the unprofessional conduct demonstrated unfitness to teach: '[1] the likelihood that the conduct may have adversely affected students or fellow teachers, [and] the degree of such adversity anticipated, [2] the proximity or remoteness in time of the conduct, [3] the type of teaching certificate held by the party involved, [4] the extenuating or aggravating circumstances, if any, surrounding the conduct, [5] the praiseworthiness or blameworthiness of the motives resulting in the conduct, [6] the likelihood of the recurrence of the questioned conduct, and [7] the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers.'" (*Broney v. California Commission on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 474, citing *Morrison, supra*, 1 Cal.3d at pp. 229-330.)

31. The criteria for unfitness in *Morrison* "must be analyzed to determine, as a threshold matter, whether the cited conduct indicates unfitness for service. [Citation.] If the *Morrison* criteria indicate unfitness to teach, the next step is to determine whether the 'unfitness' is 'evident'; i.e., whether the offensive conduct is caused by a defect in temperament." (*Woodland, supra*, 2 Cal.App.4th at p. 1445.)

32. The *Morrison* factors "'are relevant to the extent that they assist the board in determining [a]teacher's fitness to teach, i.e., in determining whether the teacher's future classroom performance and overall impact on his [or her] students are

likely to meet the [school district's] standards.'" (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1462.)

Analysis

33. Cause exists under section 44932, subdivision (a)(6), to dismiss Respondent from District. District established by a preponderance of the evidence Respondent is unfit for service and that the unfitness is evident, based on a fixed character trait which demonstrates Respondent is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies.

34. The likelihood that Respondent's conduct may have adversely affected students or fellow teachers and administrators is significant. Both AP Bell-McAllister and Rufino displayed the continuing negative impact Respondent's conduct had on them. Both became tearful during their testimony; AP Bell-McAllister continues to be on a safety plan with District in response to Respondent's July 15, 2023, conduct, and Rufino continued to voice confusion as to why Respondent would treat them as he did. Similarly, although to a lesser degree, the additional witnesses, students and staff alike, were adversely impacted by respondent's conduct. For example, Ms. Blanco was required to find coverage for Respondent, Mr. Ricks was required to intervene to prevent K [REDACTED] M. from becoming physical with Respondent, and S [REDACTED] G. and E [REDACTED] M. were disturbed by Respondent's conduct. (Factual Findings 8-11, 24-43, 45-52.)

35. Respondent's violative conduct occurred between 16 months and just over three years ago. Respondent holds a clear teaching credential and has worked as a permanent employee teaching secondary PE for six and one-half years.

36. The evidence did not establish extenuating circumstances surrounding Respondent's conduct. The aggravating circumstances surrounding Respondent's conduct were that it was unprovoked and erratic. Although on a few occasions students were misbehaving in his classes at MDHS, such conduct can be expected, and teachers are expected to manage such disruptions without violating District policies and standards. The majority of Respondent's conduct arose from his own internal beliefs or thought processes, were not fitting of the situation, and he was unable to filter or control his behavior to comport to District policies and standards. (Factual Findings 8-11, 24-43, 45-52.)

37. The likelihood of the recurrence of Respondent's conduct is significant. Respondent did not acknowledge wrongdoing or express remorse for his conduct. Further, Respondent's conduct during the hearing demonstrated Respondent continues to have repeated and consistent struggles comporting to basic decorum required in professional settings and that is considerate toward good order and the public welfare. Further, Respondent continues to experience the behaviors of others as invitations to his misconduct. (Factual Findings 79-95.)

38. The evidence did not establish praiseworthiness or blameworthiness of the motives resulting in Respondent's conduct. The evidence did not establish that disciplinary action against Respondent may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers.

39. Respondent's conduct between November 4, 2021, and July 15, 2023, demonstrates an unfitness to teach. Respondent's persistent violations despite multiple warnings and assistance and guidance demonstrate Respondent's unfitness is based on a fixed character trait by reason of temperamental defects or inadequacies. Respondent's lack of accountability or remorse for his conduct, and his attribution of

responsibility to others for his conduct, compounds this unfitness as it demonstrates a present affirmation that he would not act to prevent such conduct in the future. Finally, Respondent's testimony and conduct at hearing demonstrated a persistent inability to control his conduct, including his disruptive, intimidating, and violent outbursts, or to stay mentally present for an extended period of time without engaging in such conduct. In total, Respondent presented with a fixed character trait, not remediable on receipt of notice that his conduct fails to meet District's expectations, and which demonstrates he is not fit to teach by reason of temperamental defects or inadequacies. (Factual Findings 8-11, 15-43, 45-95.)

Disposition

40. District established by a preponderance of the evidence cause to dismiss Respondent from District based on immoral conduct, unprofessional conduct, dishonesty, persistent violations of or refusal to obey District policies and standards, willful refusal to perform his regular assignment, and his evident unfitness to teach. The majority of the Commission concludes dismissal is the appropriate discipline.

Dissent

41. Commissioner Durham concluded District did not establish by a preponderance of the evidence that Respondent committed immoral or unprofessional conduct, or that Respondent is unfit for service. Further, Commissioner Durham concluded Respondent's acts did not warrant dismissal from District.

ORDER

Respondent Les Obie (EN 1061363) is dismissed as a permanent certificated employee of the Los Angeles Unified School District.

DATE: 01/22/2025


Ray Alcala (Jan 22, 2025 14:10 PST)

RAY ALCALA

Commission Member

DATE: 01/22/2025


Jim Durham (Jan 22, 2025 17:10 PST)

JIM D. DURHAM

Commission Member

DATE: 01/22/2025


Chantal Sampogna (Jan 22, 2025 17:17 PST)

CHANTAL M. SAMPOGNA

Administrative Law Judge

Office of Administrative Hearings